

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X **SUMMONS**

SAMUEL RIVERA,

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

- against -

THE CITY OF NEW YORK, POLICE OFFICER TYLER
STAVIS, POLICE OFFICER JOHN CAPARRO (FIRST
NAME UNKNOWN),

Defendants.

The basis of venue is:
The county in which the action
arose per CPLR 504(3)

The cause of action arose in
Kings County and is against
the City of New York

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner.

IN CASE OF YOUR FAILURE TO APPEAR OR ANSWER, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
September 16, 2019

DEFENDANTS' ADDRESS:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

POLICE OFFICER TYLER STAVIS
60th Precinct
2951 W. 8th Street
Brooklyn, NY 11224

POLICE OFFICER CAPARRO
60th Precinct
2951 W. 8th Street
Brooklyn, NY 11224

PLAINTIFF'S ATTORNEY:



Masai I. Lord, Esq.
Attorney for Plaintiff
233 Broadway, Suite 2220
New York, NY 10279
718-701-1002

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
 SAMUEL RIVERA,

Plaintiff,

Index No.:

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER TYLER
 STAVIS, POLICE OFFICER JOHN CAPARRO (FIRST
 NAME UNKNOWN),

,

Defendants,

-----X

Plaintiff, SAMUEL RIVERA, by his attorneys. LORD & SCHEWEL PLLC, alleges upon knowledge as to himself and his own actions, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff SAMUEL RIVERA brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes, for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

2. That at all times hereinafter mentioned, the DEFENDANT THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York and doing business in the State of New York.

3. That at all times hereinafter mentioned, the DEFENDANT SAMUEL RIVERA, DEFENDANT POLICE OFFICER CAPARRO was an employee of the New York City Police Department, acting in their capacity as a police officers, and under color of law.

4. That all acts and incidents complained of herein occurred in Kings County, City,

and State of New York.

5. That within 90 days after the state law claim of Malicious Prosecution accrued, Plaintiff served a Notice of Claim, in writing, sworn by the claimant, containing the name and post office address of the Plaintiff and Plaintiff's attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the DEFENDANTS by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

6. That Plaintiff appeared for a hearing pursuant to §50-H of the General Municipal Law on or about May 14, 2019.

7. That the DEFENDANTS have not adjusted, settled or paid the same.

8. That this claim has been commenced and this action has been started within one year and ninety days after the accrual of the state law violation upon which the New York state law claims are based.

9. That all conditions and requirements precedent to the commencement of this action have been complied with.

10. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS owed the Plaintiff a non-delegable duty of care.

11. Pursuant to CPLR Section 1602(7), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS acted with reckless disregard of the safety of others.

12. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally

liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS are vicariously liable for the negligent acts and omissions of others who caused or contributed to the Plaintiff's damages.

16. That by reason of the foregoing, this Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

STATEMENT OF FACTS

14. On or about May 14, 2018 PLAINTIFF SAMUEL RIVERA was walking through the Marlboro Projects on the way to the park for a barbeque.

15. While he was walking to the barbeque, two uniformed officers approached him, grabbed him, and Officer Tavis told Mr. Rivera that he saw Mr. Rivera "hitting that girl."

16. Previously, Mr. Rivera had been in a brief argument with Lauren Giordano near the corner store. At no point in time was there any physical contact or attempted physical contact by Mr. Rivera.

17. After Mr. Rivera was stopped and seized by the Officers, Ms. Giordano saw Mr. Rivera be arrested and ran up to the Officers attempting to ascertain what was going on.

18. Officer Stavis told Ms. Giordano that he had seen Mr. Rivera hit her. Ms. Giordano responded that he did not hit her.

19. In fact, from where Officer Stavis was located there is no possible way that he could of seen Mr. Rivera assault or attempt to assault Ms. Giordano.

21. Ms. Giordano refused to sign the DIR because it contained false information.

22. Officer Stavis then told the KCDA that he saw Mr. Rivera punch Ms. Giordano in the face.

23. Officer Stavis gave this information to the Kings County District Attorney's Office knowing that it was false.

20. Mr. Rivera was unlawfully arrested and charged with PL §§§ 110/120.00, 120.15, and 240.26(1).

21. Plaintiff was arraigned on May 14, 2018 and was released on his own recognizance.

22. Plaintiff was incarcerated for approximately one day.

23. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

24. These charges against Plaintiff was based entirely on the false allegations and fabrications by DEFENDANT Officer Stavis.

25. All criminal charges against Plaintiff relating to this arrest were dismissed on or about December 14, 2018.

26. Plaintiff was illegally was stopped, arrested and imprisoned by agents and/or employees of the City of New York, including, but not limited to, upon information and belief, agents employed by the New York City Police Department.

27. Plaintiff was then maliciously prosecuted by and at the direction of the said individuals.

28. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified.

29. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW

YORK, its agents, servants and/or employees.

30. As a result of the DEFENDANTS' conduct, Plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

**FIRST CAUSE OF ACTION:
FALSE ARREST UNDER 42 U.S.C 1983**

31. Plaintiff repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

32. Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK POLICE DEPARTMENT and CITY OF NEW YORK.

33. As a result of the aforesaid conduct by DEFENDANTS, Plaintiff was subjected to illegal, improper and false arrest by the DEFENDANTS and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

34. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

35. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**SECOND CAUSE OF ACTION:
MALICIOUS PROSECUTION UNDER STATE AND FEDERAL LAW**

36. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

37. At the aforementioned times and locations, was detained and held under the imprisonment and control of the DEFENDANTS and other unidentified officers of the NYPD present on the scene without probable cause.

38. DEFENDANTS commenced the criminal action against Plaintiff in the absence of any probable cause that a crime had been committed.

39. DEFENDANTS commenced this criminal action out of malice.

40. The criminal action against Plaintiff has terminated in his favor.

41. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

42. That Plaintiff was conscious of the confinement.

43. That as a direct, sole and proximate result of the false arrest, imprisonment, and malicious prosecution, Plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life.

44. The acts and conduct of the DEFENDANTS were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitutions of the State of New York and of the United States.

45. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional

distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and his standing within their community.

46. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**THIRD CAUSE OF ACTION:
NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

47. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

48. The DEFENDANT, The City of New York, including but not limited to Police Officer Tyler Stavis and Police Officer Caparro, acted intentionally, recklessly, and with utter disregard to the consequences of their actions and caused severe emotional distress to Plaintiff through their actions.

49. Such actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulting in severe emotional distress to Plaintiff.

50. That as a result of said intentional and negligent acts, the Plaintiff received serious injuries in diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish, and psychological trauma and was otherwise injured.

51. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

**FOURTH CAUSE OF ACTION:
VIOLATIONS OF THE RIGHT TO A FAIR PROSECUTION AND DUE
PROCESS OF LAW UNDER 42 U.S.C. 1983**

52. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

53. That DEFENDANT Tyler Stavis falsely stated under penalty of perjury, and then forward this information to the Kings County District Attorney's Office ("KCDA"), that he saw

Mr. Rivera punch Ms. Giordano in the face. This claim was to give the misleading and false impression that DEFENDANT conducted a lawful arrest.

54. Further, Officer Stavis failed to inform the KCDA that Ms. Giordano denied any involvement immediately after.

55. That the aforementioned statements by the DEFENDANT, and actions by the DEFENDANT, consisted of fabricated and falsified information was utilized and relied upon by the Kings County District Attorney's Office.

56. Furthermore, DEFENDANTS failed to timely disclose material favorable to the defense in contravention of Brady v. Maryland, 373 U.S. 83 (1963), Giglio v. United States, 405 U.S. 150 (1972), and their progeny.

57. The Individual DEFENDANTS acting individually and in concert and conspiracy, deliberately, and recklessly.

58. At all times DEFENDANTS were acting within their scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

59. That this information caused Plaintiff to be denied his liberty and right to a fair prosecution in violation of fourth, fifth, sixth, and fourteenth amendments of the United States Constitution.

**FIFTH CAUSE OF ACTION:
FAILURE TO INTERVENE UNDER 42 1983 U.S.C
(Against Officer Caparro)**

69. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

70. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to

intervene.

71. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

**SIXTH CAUSE OF ACTION:
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION**

72. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

73. By virtue of the aforementioned acts, the Individual DEFENDANTS are liable to Plaintiff for violating his right to due process under Article I, § 6 of the New York State Constitution, and his right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

74. DEFENDANT THE CITY OF NEW YORK and the New York City Police Department are liable for these violations of the New York State Constitution under the principle of respondeat superior.

DAMAGES

75. As a direct and proximate cause of DEFENDANTS' actions and inactions, Plaintiff was deprived of his civil rights under the Fourth, Fifth, Sixth, and Fourteen Amendments of the United States Constitution and under the laws of New York.

76. This action seeks damages from on or prior to September 09, 2017 through the present.

77. The unlawful, intentional, willful, deliberately indifferent, reckless, negligent, wanton and/or bad-faith acts and omissions of DEFENDANTS caused Plaintiff to be forced to be maliciously prosecuted, deprived of liberty, deprived of relevant and exculpatory evidence, and subjected to illegal searches.

78. Such acts and omissions of DEFENDANTS caused the following injuries and damages to Plaintiff which were foreseeable to DEFENDANTS at the time of the acts and omissions and which continue to date and will continue into the future: susceptibility to physical assaults and batteries and physical assault and batteries, physical injuries, pain and suffering, mental anguish, emotional distress, psychological damage, loss of liberty, loss of relationships, loss of property, loss of companionship, loss of consortium, loss of guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation.

79. Such acts and omissions of DEFENDANTS entitle Plaintiff to compensatory and punitive damages.

[REMAINDER INTENTIONALLY LEFT BLANK]

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the DEFENDANTS:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
September 16, 2019

Yours, etc.

Lord & Schewel PLLC



Masai I. Lord
Attorneys for Plaintiff
SAMUEL RIVERA
233 Broadway, Suite 2220
New York, NY 10279
718-701-1002

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD & SCHEWEL PLLC, attorneys of record for Plaintiff SAMUEL RIVERA. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
September 16, 2019



MASAI I. LORD
Counsel for Plaintiff